



United States
Attorney's Office
Eastern District of Texas



Collin County physician agrees to pay \$3.5 million to resolve False Claims Act allegations of billing false claims to the COVID-19 Uninsured Program for evaluation & management services not rendered

Friday, May 30, 2025

For Immediate Release

U.S. Attorney's Office, Eastern District of Texas

PLANO, Texas – A Frisco physician has agreed to pay \$3.5 million to resolve False Claims Act allegations in the Eastern District of Texas, announced Acting U.S. Attorney Jay R. Combs.

Samad Khan, M.D. has agreed to pay the United States \$3.5 million to resolve allegations that he violated the False Claims Act by knowingly submitting or causing the submission of false claims to the Health Resources & Services Administration COVID-19 Claims Reimbursement to Health Care Providers and Facilities for Testing, Treatment, and Vaccine Administration for the Uninsured Program (the "Uninsured Program") for evaluation and management services that were not performed.

Between approximately May 2020 and April 2022, the Uninsured Program reimbursed eligible providers for COVID-19 tests, testing-related items and services, treatment, and vaccines performed on uninsured individuals. Khan is a physician who owns SK Primary Care, PLLC ("SK Primary Care"), a medical clinic in Frisco. During the COVID-19 Public Health Emergency ("PHE"), SK Primary Care provided healthcare services, including specimen collection for COVID-19 tests. The settlement announced today resolves allegations that from April 2020 through October 2021, Khan knowingly submitted or caused the submission of false claims to the Uninsured Program by billing evaluation and management services (E/M Services) that were not performed.

As alleged by the United States, claims for E/M Services, sometimes referred to as "office visits," are submitted under Current Procedural Terminology ("CPT") Codes, and vary in level of complexity. Higher level codes reflect increased complexity, such as a higher level of decision-making, more detailed history, or longer duration of time. E/M Services levels 2 through 5 (e.g. CPT Codes 99202 through 99205, and 99212 through 99215) ("Higher Level E/M Services") can only be performed by physicians or other qualified health care professionals ("QHPs"). These professionals are distinct from clinical staff, such as medical assistants. A level 1 E/M Service, under CPT Code 99211, may not require the presence of a physician or other QHP. During the PHE, CMS approved the use of CPT Code 99211 for COVID-19 test specimen collection. Physicians and non-physician practitioners, such as nurse practitioners (NPs) were required to use CPT Code 99211 to bill for COVID-19 specimen collection billed by clinical staff incident to their services.

The United States contends that during the PHE, SK Primary Care provided services at dozens of COVID-19 testing sites in Texas, operated by SK Primary Care and its management company, the majority of which were walk up or drive through testing sites (the "COVID test sites"). Patients could register to receive a test at the COVID test sites by registering online through a website called "GoGetTested.Com." The United States alleges that the COVID test sites were staffed with medical assistants who performed specimen collection services through nasal swabs on patients for COVID-19 tests. Khan knew that the appropriate CPT Codes for the services provided at the COVID test sites were specimen collection codes, including CPT Code 99211, but instead submitted claims under CPT Codes for Higher Level E/M Services. The United States contends that patients who went to the COVID test sites were never seen by Khan or any other QHP, and at no time was Khan or any other QHP providing any E/M Services to patients at the COVID test sites either in person or by audiovisual means. From April 2020 through October 2021, for the services provided at the COVID test sites, Khan submitted or caused the submission of approximately 400,000 claims by SK Primary Care to the Uninsured Program for Higher Level E/M Services, the majority of which were level 2 and 3 E/M services. Khan is the only rendering provider listed on SK Primary Care's claims.

The United States further alleges that Khan, in conjunction with and at the direction of SK Primary Care's management company, coded the COVID specimen collection services as Higher Level E/M Services. Reimbursements for E/M Services were substantially higher than reimbursements for specimen collection. Moreover, in conjunction with and at the direction of SK Primary Care's management company, SK Primary Care and Khan often submitted two claims for E/M Services for COVID-19 test specimen collection—the first "encounter" for the test, and a second "encounter" for providing results. The second "encounter" of providing results was not Khan providing E/M Services. Instead, an employee or contractor of SK Primary Care or SK Primary Care's management company, such as nurse practitioners (NPs) and medical assistants, would provide tests results via telephone based on a courtesy call script. NPs were not providing medical services, did not have any audiovisual connection to patients, and in many instances never even spoke to the patients to provide results, which were emailed or sent by text message. As a result of these false claims for payment for E/M Services that were not performed, Khan received payments from the Uninsured Program to which he was not entitled.

“The onset of the COVID-19 pandemic required both beneficiaries and the government to place their trust in front-line healthcare providers, even more than usual,” said Jay R. Combs, Acting U.S. Attorney for the Eastern District of Texas. “Unfortunately, some of those providers abused that trust and instead took advantage of the crisis to artificially inflate profits. It is these individuals that the Eastern District of Texas will hold accountable for their greed.”

“When health care professionals receive payments for false claims they submit to federal health care programs, they erode public trust and divert taxpayer-funded resources away from those who truly need them,” said Special Agent in Charge Jason E. Meadows of the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). “This settlement demonstrates our steadfast commitment to safeguarding taxpayer funds and working with our law enforcement partners to use all tools in our arsenal to hold accountable those who steal from the American public.”

The resolution obtained in this matter was the result of a coordinated effort between the Justice Department’s Civil Division, Commercial Litigation Branch, Fraud Section, and the U.S. Attorney’s Office for the Eastern District of Texas with assistance from HHS-OIG. This matter was handled by Civil Division Fraud Section Trial Attorney Elizabeth J. Kappakas and by Assistant U.S. Attorneys James Gillingham and Kevin McClendon.

The claims resolved by the settlement are allegations only and there has been no determination of liability.

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